



STUDY GUIDE / 01

Development of the Duty of Care

An introductory guide to negligence in England and Wales. The Scottish case **Donoghue v Stevenson** is included because it shaped English law. This guide follows the uploaded lesson and adds a short bridge to the modern approach.

1. What is a duty of care?

A **tort** is a civil wrong for which the law provides a remedy. **Negligence** is a tort concerned with failing to take legally required reasonable care. A **duty of care** is a legal obligation to take reasonable care towards another person in a particular situation.

Start with four questions: **Duty:** did the defendant owe care to the claimant? **Breach:** did the defendant fail to take reasonable care? **Causation:** did that failure cause the harm? **Damage:** is the harm legally recoverable? A duty alone does not prove the whole claim.

Claimant: the person bringing the claim. **Defendant:** the person or organisation being sued. **Damages:** money awarded as compensation.

2. Donoghue v Stevenson (1932) [1]

Facts alleged: a friend bought Mrs Donoghue ginger beer in an opaque bottle. She said a decomposed snail was inside and that drinking the beer made her ill. She had no contract with Stevenson, the manufacturer.

Principle: Lord Atkin explained that reasonable care is owed to people closely and directly affected by one's conduct whom one should reasonably have in mind. A manufacturer could owe a duty to the ultimate consumer where the product would reach that consumer without a reasonable opportunity for intermediate examination.

Who won, and why? Mrs Donoghue won her appeal, by a 3-2 majority. The absence of a contract did not prevent her negligence claim. The House of Lords allowed it to proceed; it did not establish at that stage that a snail existed or award final damages.

Remember: a legal neighbour is not simply the person living next door. The relationship and the foreseeable risk matter.



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Careless words: Hedley Byrne

3. Hedley Byrne & Co Ltd v Heller & Partners Ltd [2]

Decided in 1963; reported as [1964] AC 465. The advertising agency Hedley Byrne wanted information about the financial position of its customer, **Easipower Ltd**.

Through its own bank, it obtained references from Heller, Easipower's bank. It relied on the references and lost over £17,000 when Easipower went into liquidation.

Legal question: can careless information create liability for financial loss even when there is no contract between the person giving it and the person relying on it?

Principle: a duty may arise from an assumption of responsibility for advice or information, together with reasonable reliance. The important point is the particular relationship and purpose, not merely that somebody makes an inaccurate statement.

Who won, and why? Heller, the defendant bank, won. Its reference expressly disclaimed responsibility, so it had not undertaken the relevant responsibility. Hedley Byrne recovered no damages from Heller. The case nevertheless recognised that negligent statements can create liability in appropriate circumstances.

Words to understand

Creditworthy: considered able to pay debts. **Liquidation:** a process of winding up a company. **Reliance:** acting because one trusts information. **Disclaimer:** wording intended to limit or reject responsibility. **Pure economic loss:** financial loss not resulting from personal injury or damage to other property.

A simple example - invented

A university club asks an accountant to check whether a supplier can repay an advance. The accountant agrees to provide a careful assessment for that specific decision. The club pays because it trusts the assessment. This situation raises questions about responsibility, reasonable reliance and financial loss. It does not automatically prove negligence: breach, causation and recoverable loss must also be established.

Practical caution: the result in this historical case does not mean that every disclaimer is legally effective today. Its effect depends on the circumstances and applicable legislation.



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Harm caused by others: Dorset Yacht

4. Home Office v Dorset Yacht Co Ltd (1970) [3]

Facts assumed for the legal issue: young offenders from a borstal were working on Brownsea Island under officers' supervision. They escaped at night after the officers failed to supervise them properly. During their escape using a boat, they damaged the claimant's yacht.

Legal question: could a duty arise even though the offenders, rather than the officers themselves, caused the immediate damage?

Principle: the officers had control over the offenders, and damage to nearby boats during an escape was a foreseeable consequence of inadequate supervision. The claim concerned the officers' own alleged carelessness, not automatic responsibility for everything the offenders might do.

Who won, and why? Dorset Yacht won on the preliminary duty-of-care issue. The House of Lords dismissed the Home Office's appeal: a duty could arise on the assumed facts. This permitted the claim to continue; it was not a final assessment of damages after a full trial.

Words to understand

Borstal: a historical institution for young offenders. **Third party:** someone other than the claimant and defendant. **Omission:** a failure to act. **Foreseeable:** a risk a reasonable person could anticipate. **Preliminary issue:** a legal question decided before the whole case is tried.

Why this is not a duty to protect everyone

English negligence law generally distinguishes between causing harm and failing to prevent harm from another source. There is no general duty to prevent every injury caused by someone else. A special relationship, such as control over a source of danger, can change the position. [6]

A simple comparison - invented

A stranger sees someone behaving dangerously near a bicycle. A trained supervisor has been placed in charge of that person and can prevent the danger. Those are different relationships. Ask: **who had control, what risk was foreseeable, and whose failure is alleged?** Physical closeness alone does not answer the duty question.



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A broad two-stage approach: Anns v Merton

5. Anns v Merton London Borough Council [4]

Decided in 1977; reported as [1978] AC 728. Long leaseholders of flats alleged that inadequate foundations caused cracks and sloping floors. They sued the local council for negligence relating to the approval or inspection of the foundations. The case raised preliminary questions about duty and the time limit for bringing the claims.

Lord Wilberforce's two-stage approach:

Stage 1: Is there sufficient proximity or neighbourhood, so that the defendant should reasonably anticipate that carelessness may cause damage to the claimant? If so, a provisional duty arises.

Stage 2: Are there considerations that should remove, reduce or limit the duty, the people protected or the recoverable damages?

Who won, and why? The leaseholders succeeded at this preliminary stage: the council's appeal was dismissed and the claims could continue under the court's duty and limitation analysis. This was not a final finding that the council had been negligent or an award of damages after trial.

Words to understand

Leaseholder: a person holding property under a lease. **Foundations:** the supporting base of a building. **Proximity:** a sufficiently close legal relationship; it is not simply physical distance. **Prima facie:** at first sight, or provisionally. **Policy considerations:** reasons about how a rule affects the legal system and society.

Why it matters historically

The approach started broadly, then looked for reasons to limit the duty. It made expansion easier. But it is **not the general test to use in English law today**: Anns was later overruled in Murphy. [5]

A simple example - invented: imagine deciding whether a new campus service should accept legal responsibility for students' losses. A broad approach begins with the close relationship and risk, then asks what limits are needed. Studying that reasoning helps explain the history; it does not determine a real modern claim.



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Limits and the modern approach

6. Murphy v Brentwood District Council [5]

Decided in 1990; reported as [1991] 1 AC 398. Mr Murphy's house had defective foundations. He sold it at a loss and claimed compensation from the council for negligent building control.

Who won, and why? Brentwood District Council won. The loss in value of the defective house itself was treated as pure economic loss, outside the council's relevant negligence duty. The House of Lords overruled Anns.

Do not infer that all financial losses are irrecoverable: Hedley Byrne illustrates a recognised route through responsibility and reliance. Nor does Murphy determine every modern building claim; contracts and legislation may provide other routes.

7. Robinson v Chief Constable of West Yorkshire Police (2018) [6]

Mrs Robinson, a pedestrian, was injured during a police arrest. **She won her Supreme Court appeal:** the officers owed a duty under ordinary negligence principles because their conduct foreseeably exposed her to physical injury. The Chief Constable was held liable for the injuries caused by their negligence; the case was returned for damages to be assessed.

For duty questions, **start with established cases and principles.** In genuinely new situations, develop the law carefully by analogy, considering coherence and whether recognising a duty is fair, just and reasonable. Robinson rejects a universal checklist for every claim.

The development at a glance

Case	Main contribution
Donoghue	Duty can exist without a contract.
Hedley Byrne	Careless information and financial loss.
Dorset Yacht	Control and foreseeable third-party harm.
Anns	Broad two-stage approach; later overruled.
Murphy	Limits on recovery for a defective building.
Robinson	Established principles first; careful development.



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Check your understanding

Try answering first. Then compare your reasoning with the answers below.

1. Does a duty of care mean that the claimant has already won?

Answer: No. The claimant must also establish breach, causation and legally recoverable damage.

2. Why did the lack of a contract matter in Donoghue?

Answer: It prevented reliance on a contract with the manufacturer, but did not prevent a negligence claim. Mrs Donoghue won the appeal allowing her claim to proceed.

3. Hedley Byrne recognised a possible duty for advice. Why did the bank still win?

Answer: The disclaimer prevented the relevant assumption of responsibility in that case. Recognising a legal principle does not mean the claimant succeeds on the facts.

4. In Dorset Yacht, who physically damaged the yacht, and whose carelessness was alleged?

Answer: The young offenders caused the immediate damage. The claim alleged careless supervision by officers who controlled them.

5. True or false: proximity always means being physically nearby.

Answer: False. Proximity is a legal relationship. Distance may be relevant, but is not the whole question.

6. What are the two stages in Anns? Can you apply it as today's general English test?

Answer: First, a close relationship and foreseeable harm; second, reasons to limit or negate the provisional duty. No: Anns was overruled.

7. Why could a cracked house still involve pure economic loss in Murphy?

Answer: The claim concerned the reduced value of the defective house itself. Cracks do not automatically turn that claim into damage to other property.

8. A classmate casually predicts that a shop will be profitable. You invest and lose money. Is the prediction alone enough to prove a duty?

Answer: No. Ask about the relationship, the purpose of the statement, responsibility and reasonable reliance. Then consider the other elements of negligence.



Sources and study notes

The uploaded transcript provides the lesson sequence. Case names, dates, principles and outcomes were checked against the judgments below. The examples labelled “invented” are teaching scenarios, not decided cases. Links open the source text.

[1] **Donoghue v Stevenson [1932] AC 562.**

House of Lords, 26 May 1932. See Lord Atkin on the neighbour principle and the manufacturer-consumer relationship; the appeal was allowed. Judgment reproduced by the University of Trier.

[Read the judgment](#)

[2] **Hedley Byrne & Co Ltd v Heller & Partners Ltd [1964] AC 465.**

House of Lords, 28 May 1963. See the opening facts and speeches on responsibility, reliance and the disclaimer. Judgment reproduction, LawCare Nigeria.

[Read the judgment](#)

[3] **Home Office v Dorset Yacht Co Ltd [1970] AC 1004.**

House of Lords, 6 May 1970. See Lord Reid on the preliminary issue, supervision and foreseeable damage. Judgment reproduction, vLex.

[Read the judgment](#)

[4] **Anns v Merton London Borough Council [1978] AC 728.**

House of Lords, 12 May 1977. See Lord Wilberforce's two-stage approach, especially p. 751, and the preliminary duty and limitation issues. Judgment reproduction, LawCare Nigeria.

[Read the judgment](#)

[5] **Murphy v Brentwood District Council [1991] 1 AC 398.**

House of Lords, 26 July 1990. See Lord Keith and Lord Bridge on pure economic loss and the overruling of Anns. Judgment reproduction, LawCare Nigeria.

[Read the judgment](#)

[6] **Robinson v Chief Constable of West Yorkshire Police [2018] UKSC 4.**

UK Supreme Court, 8 February 2018. See paras 21-30 on the method for duty questions, paras 33-37 on acts and omissions, and paras 68-81 on the outcome. Official judgment.

[Read the judgment](#)

Corrected details from the transcript

Use **Donoghue v Stevenson** and **Lord Atkin**; **Easipower**; **Home Office v Dorset Yacht Co Ltd**; and **Anns v Merton London Borough Council**. The Hedley Byrne judgment records a loss of **over £17,000**, rather than £15,000. A law report's year may differ from the year the judgment was given.

Scope: introductory common-law negligence. Building liability may also be governed by legislation; this guide does not survey those separate statutory remedies. Sources checked 4 October 2026.